

IN THE MATTER OF AN INTEREST ARBITRATION

BETWEEN:

THE CORPORATION OF NORFOLK COUNTY

(the “Employer” or the “County”)

-and-

ONTARIO PUBLIC SERVICE EMPLOYEES UNION, LOCAL 279

(the “Union”)

BOARD OF ARBITRATION:

Christine Schmidt, Chair
Thomas A. Stefanik, Employer Nominee
Terry Moore, Union Nominee

APPEARANCES:

For the County: Thomas Agnew, Counsel
Erin Anderson, Director, Human Resources
Morgan Balazs, Employee and Labour Relations Specialist
Stuart Burnett, Deputy Chief, Paramedic Services

For the Union: Manzur Malik, Research Officer
Mirla Alvarado Fenn, Negotiator
Devon Lansdell, Bargaining Committee
Andy Weber, Bargaining Committee
Ron Rivard, Bargaining Committee

This hearing was held via videoconference on December 10, 2021 and January 19, 2021. An Executive Session was held on February 9, 2022.

Introduction

This is NOT an interest arbitration pursuant to section 40 of the *Labour Relations Act, 1995* (“LRA”). The Board of Arbitration (“the Board”) has been appointed pursuant to Letter of Understanding (#6) of the collective agreement between the parties to adjudicate upon the issues that remain in dispute between them in respect of the negotiation to renew the agreement that expired on March 31, 2020. The successive collective agreement will run for a three-year term expiring March 31, 2023 as the parties were unable to agree to a longer term. There is no dispute with respect to our authority.

Background

Since the Ontario Government downloaded the responsibility for land ambulance services to Upper Tier Municipalities (“UTMs”) in the early 2000’s the County has provided its Emergency Medical Services. The County is located on the north shore of Lake Erie in Southwestern Ontario. It has a population of approximately 64,000. The County employs almost 1000 employees, just over 700 of whom are unionized. Other than OPSEU, there are five bargaining units represented by five different unions. Since the County has provided land ambulance services, the parties have entered into six collective agreements, the most recent of which expired on March 31, 2020, the renewal of which was finalized by an award of a Board of Arbitration. I was the chair of that Board as were the nominees.

The bargaining unit consists of approximately 54 full-time and 39 part-time Primary Care Paramedics (“PCPs”). The PCPs provide 24-hour land ambulance services throughout the County with a Fleet of 17 vehicles (11 ambulances and 6 support vehicles). The six bases are located in Simcoe (two ambulances), Port Dover (two ambulances), Waterford (two ambulances), Delhi (two ambulances), Port Rowan (two ambulances) and Langton (one ambulance).

The Union gave notice to bargain on January 2, 2020, and the parties met to negotiate on approximately 10 occasions between March 2020 and June 2020. Conciliation took place on November 6, 2020, December 16, 2020 and February 1, 2021, after which a no-board report was issued on February 9, 2021. While a number of items have been agreed between the parties, including the Employer proposal pertaining to Article 20.01 through 20.08 as reflected in its brief. The following issues remain in dispute, and having regard to wage proposals, the Union is seeking an increase of 2.25% in for each of the three years of the renewal collective agreement, while the County proposed 0%, 0.5% and 0.75% in each year, commencing April 1, 2020.

1. Article 16.10 – Overtime and Statutory Holiday Bank drawn from LOU #4 (NEW) (Union Proposal)
2. Article 17.01 – Shift Premiums (Union Proposal)
3. Article 19.04 – Vacation (Union and County proposals)
4. Article 20.02 - Sick Leave (Union proposal)
5. Article 18.01 – Designated Holidays (County Proposal)
6. Letter of Understanding #11 - Platoon Leader (County Proposal)
7. Article 23.01 – Health and Welfare Benefits (County Proposal)
8. Schedule “B” – Wages

In assessing the merits of the outstanding issues in dispute, the Board has been guided by the legislative criteria. Despite the fact that this is an interest arbitration pursuant to section 40 of the LRA, the parties were in agreement that the Board should be guided by the legislative criteria as set out in the *Ambulance Services Collective Bargaining Act* in determining the outcome of these matters. The Board’s primary task, however, is to replicate the agreement that would have been reached in the context of free collective bargaining, with comparability as the primary tool to effect such a resolution. The Board has also been governed by long accepted principles developed in the interest arbitration jurisprudence of demonstrated need and total compensation.

Having regard to all the foregoing, we award as follows.

AWARD

We direct the parties to enter into a renewal collective agreement for the term of April 1, 2020 to March 31, 2023. The collective agreement shall consist of the unchanged items from the collective agreement that expired on March 31, 2020, the items agreed by the parties themselves, and the Board's award on only those items set out herein. Any proposal not explicitly dealt with herein is denied.

Article 16.10 New – drawn from LOU # 4 – Overtime and Statutory Holiday Bank

The new article will read as does LOU #4 (Banked Overtime) which is to be deleted, except the first paragraph, which second sentence is be amended to reflect an increase from 48 hours to 72 hours for the Statutory Holiday Bank only (the Overtime bank remains at a maximum of 48 hours).

Though the Board notes that the Union proposed to enshrine the practice of paramedics converting previously booked vacation into the Overtime/Statutory Holiday banks, the County gave notice to the Union that it would no longer allow the past practice to continue. The Union argues that the flexibility provided by the past practice is crucial to the paramedics. While the Board appreciates the loss of flexibility in the circumstances, that loss, having regard to the submissions made falls short of demonstrating a need for the practice to continue.

Article 17.01 Shift Premium

Increase the shift premium to \$1.00 per hour effective April 1, 2022.

Article 19.04 Vacation

The first two paragraphs are to be amended as follows effective the date of the award (and will therefore impact the calendar year commencing January 1, 2023). The amendment to the second paragraph was agreed to by the parties.

The two amendments are in bold for ease of reference :

Full-time paramedics who indicate their vacation preference prior to October 1 with approval by November 1, for the following year will have their vacations approved in order of seniority. The employer shall endeavor to give either Christmas or New Year's off, on a rotating basis. During this initial allotment, it is understood that in any given 24 hour day **7** full-time paramedics will be granted vacation. Additional vacation requests may be granted for any given day based on availability of shift coverage. During the period of time from December 24 at 0700 hours and January 1 at 1900 hours, the Employer will endeavor to provide 5 full-time paramedics vacation based on availability. This preference will be in writing on a form to be provided by the Employer.

If a full-time paramedic does not indicate their vacation preference by October 1 in each year, vacations requested will be approved on a first come basis, based on operational needs. Full-time paramedics must submit fifty percent (50%) of their annual vacation before **March 1** of the current year.

Schedule "B" – Wages

The parties were agreed on the relevant comparators. Having carefully reviewed the evidence pertaining to each of the comparators' respective wage rates and the increase to those rates for the years at issue, the Board awards the following retroactive increases to wages:

- Effective April 1, 2020: 1.8%
- Effective April 1, 2021: 1.9%
- Effective April 1, 2022: 2.0%

Retroactivity

Wages are to be retroactive. Wage retroactivity is to be paid on the basis of all paid hours from April 1, 2020. Payment is to be made within sixty (60) days of the date of this award. Eligible employees who have left the employ of the County are to be so notified in writing at their address on file within thirty (30) days of this award. Payment is to be made within thirty (30) days of acknowledgement of receipt of such notice.

We remain seized until such time as a collective agreement is in effect between the parties.

Dated at TORONTO this 18th day of February 2022.



Christine Schmidt, Arbitrator

"Thomas A. Stefanik, I dissent, in part"

Thomas A. Stefanik, Employer Nominee

"Terry Moore, I dissent, in part"

Terry Moore, Union Nominee

Union Nominee Dissent

I have disagreements with the Chair on two aspects of this award: first with regard to what might be called the Union's "time-off package" and secondly concerning the outcome on wages.

With respect to the Union's time-off proposals, the package included increases to the caps on Stat Holiday Lieu Time and Overtime Banks as well as an increase in the number of full-time Paramedics allowed to be off on vacation leave at the same time. The union proposed increasing the Bank caps from 48 hours to 96 hours as well a change to a percentage versus hard numerical cap system governing the number of full-time Paramedics allowed vacation leave at any given time. This later change would automatically maintain the proportion allowed off as the bargaining increases in size – which it has in recent years.

In a related proposal, the Union sought to have the long-standing practice of converting booked vacation time into banked Stat Holiday/Overtime enshrined in the collective agreement. The employer gave notice to the Union at the start of this round of bargaining of its intention to eliminate this practice which has been in place for 21 years.

The Union attempted to paint a picture for the Board regarding how the various parts of the time-off system work together to provide Paramedics with tools to balance their work and personal time demands, without increased cost to the employer. I would have given much more weight to the Union's submissions than the Chair and awarded increases to both Bank caps. I would also have awarded the Union's percentage vs hard number cap proposal governing full-time vacation leave.

While the Chair has raised the Stat Holiday Bank cap to 72 hours from 48, there is no increase in the Overtime Cap and the Chair also denied the Union's request to maintain the current vacation swapping system for topping up Stat and Overtime Banks. The result is a net rollback of the current time-off system which,

in my view, is not a result that would have occurred under free collective bargaining conditions. A more balanced and likely outcome would involve the continuation of the current vacation swapping system and I would have so awarded.

On the question of wage increases, the Chair's award does not reflect the average percentage increases and resulting wage rates in place across the agreed upon comparator EMS services.

That reality, together with pandemic-induced workload pressures and rising levels of inflation lead me to conclude that the compensation outcome awarded by the Chair is simply not a result these parties would have arrived at if right-to-strike/lockout rules were in place – which is what we are supposed to be replicating through the interest arbitration process.

Under the Chair's award, the wage rates for this bargaining unit will remain below the average rates already in place across the four comparator bargaining units during each year of the renewal agreement.

In place of the 1.8%, 1.9% and 2% increases awarded by the Chair, 2% adjustments in each year would have brought this bargaining more into line with its comparators. That would have been a more fair and reasonable outcome and one which, take together with the time-off outcomes identified above, I could have concurred with.

All of Which is Respectfully Submitted.

**Terry Moore,
Union Nominee,
February 16, 2022**

EMPLOYER NOMINEE DISSENT

I respectfully disagree with the Chair's award with respect to wages.

The task of an interest arbitration board is to replicate, as best as possible, what the parties would have achieved in a freely negotiated bargaining relationship, which would include the right to strike or lock-out. Wage increases of 1.8%, 1.9% and 2% in this three year agreement are in my view beyond what the employer would have ever voluntarily agreed to.

In particular, the Chair very generously increased the shift premium to \$1.00 in the third year. To then award a 2% wage increase in addition does not appropriately reflect the reality of replication. Given the Chair's award of the shift premium (a fundamental component of compensation), together with the replication criteria, I would have awarded no more than 1.75% increases in each year.

DATED this 16th day of February, 2022.



Employer Nominee